

HOUSE No. 3436

The Commonwealth of Massachusetts

PRESENTED BY:

Tommy Vitolo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to chapter 30B procurement parity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>1/15/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/16/2025</i>

HOUSE No. 3436

By Representative Vitolo of Brookline, a petition (accompanied by bill, House, No. 3436) of Tommy Vitolo relative to procurement parity. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3127 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to chapter 30B procurement parity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4 of chapter 30B of the General Laws is amended by striking out
2 paragraphs (a) and (b) and inserting in place thereof the following two sections:-

3 (a) Except as permitted pursuant to this section and section 7, for the procurement of a
4 supply or service in the amount of \$10,000 or greater, but not more than \$100,000, a
5 procurement officer shall seek written quotations from no fewer than 3 persons customarily
6 providing the supply or service. The procurement officer shall record: (1) the names and
7 addresses of all persons from whom quotations were sought, (2) the purchase description used
8 for the procurement, (3) the names of the persons submitting quotations and (4) the date and
9 amount of each quotation. Such information shall be retained in the file required pursuant to

10 section 3. A governmental body may require that any procurement in an amount of not more than
11 \$100,000 be subject to the provisions of section 5 or section 6.

12 (b) The procurement officer shall award the contract to the responsible person offering
13 the needed quality of supply or service at the lowest quotation unless the procurement officer
14 elected to procure the supply or service subject to section 6. If the supply or service was procured
15 subject to section 6, the procurement officer shall award the contract pursuant to section 6
16 subsection (g).

17 SECTION 2. Section 5 of said Chapter 30B, is hereby amended by striking out the figure
18 “\$50,000”, each time it appears, and inserting in place thereof the following figure:- \$100,000.

19 SECTION 3. Section 6 of said Chapter 30B is hereby amended in paragraph (a) by
20 striking out the figures “\$50,000 or, a municipal or regional school district, more than \$100,000”
21 and inserting the following words: “\$100,000, except as permitted pursuant to section 4
22 subsection (a),”

23 SECTION 4. Section 6A of said chapter 30B, is hereby amended by striking out the
24 figure “\$50,000” and inserting in place thereof the following figure:- \$100,000

25 SECTION 5. Section 7 of said chapter 30B, is hereby amended by striking out the figure
26 “\$50,000” and inserting in place thereof the following figure:- \$100,000